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Case Number: 24CHCV04090 Hearing Date: September 16, 2026 Dept: F43

Dept. F43

Hearing Date: 09-16-26

Case # 24CHCV04090, Gilliard, et
al. v. Providence Holy Cross Medical Center, et al.

Trial Date: 10-11-27

MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR PRODUCTION

MOVING PARTY: Plaintiff Rochelle Gilliard

RESPONDING PARTY: No responses were received.

RELIEF REQUESTED

Order compelling defendant Providence Health

System - Southern California to serve further responses to plaintiff's first
set of requests for production numbers 37 through 46, 53, and 54 and to impose
\$5,660 in monetary sanctions against defendant.

RULING: Motion is granted. The court awards plaintiff Gilliard \$4,060 in
monetary sanctions.

SUMMARY OF ACTION

On November 5, 2024, plaintiffs Rochelle Gilliard and Earlene Johnson, individually and as surviving heirs and successors-in-interest to decedent Elizabeth Ann McCracklin and administrators of the Estate of Elizabeth Ann McCracklin, filed this elder neglect action. The First Amended Complaint pleads elder neglect and wrongful death claims against defendants Providence Holy Cross Medical Center and Providence Health System - Southern California dba Providence Holy Cross Medical Center. Defendant Providence Health System filed and served an answer on March 27, 2025. Plaintiffs allege that Ms. McCracklin was admitted to defendant Providence Holy Cross Medical Center on November 13, 2022, with chest pains. The staff knew Ms. McCracklin was at risk for developing skin breakdown and pressure ulcers second to her multiple medical conditions, including diabetes. However, the staff failed to provide the necessary assistance and care to Ms. McCracklin, violating several California laws and regulations. As a result, Ms. McCracklin developed a pressure wound that would not heal, and she died in hospice care.

On July 11, 2025, plaintiff Rochelle Gilliard electronically served defendant Providence Health System - Southern California (Defendant) with her first set of requests for production. (Declaration of Stephen M. Johnson ¶ 1, Exh. 1.) Responses were due August 12, 2026. Defendant served responses on September 9, 2025. (Johnson Decl. ¶ 2, Exh. 2.) Between November 18, 2025 and March 25, 2026, counsel exchanged meet and confer letters, granting extensions for further responses and a motion to compel. (Id. ¶¶ 3-7, Exhs. 3-10.) Defendants electronically served further responses on December 19, 2025. (Id., Exh. 5.) Plaintiff still sought further responses.

On April 28, 2026, plaintiff's counsel asked defense counsel for a table of contents or index of the applicable policies and procedures in order to identify relevant policies and procedures. (Johnson Decl., ¶ 7, Exh. 7.) Defense counsel provided the requested list of policies on May 22, 2026. (Id., Exh. 13.) On June 1, 2026, plaintiff's counsel sent a highlighted list of policies for production to defense counsel and asked defense counsel to let him know if there were any issues producing the policies. (Id. ¶ 14, Exh.

14.) On June 4, 2026, defense counsel stated she would not produce over 100 policies and procedures without relevance or good cause basis, that the request was the very definition of overly burdensome, and that the policies would not be produced without a proper discovery request. (Id. ¶ 15, Exh. 15.) In response, plaintiff's counsel asked defense counsel to highlight the policies she deems not relevant so counsel could meet and confer. (Id., Exh. 15 at p. 2.) Defense counsel responded that her understanding was that the table of contents would be provided informally so that Plaintiff could serve specific requests for production for the relevant policies, referencing an email from plaintiff's counsel's paralegal which noted having access to the lists of policies would allow plaintiff's counsel to better tailor the requests for production. (Id., Exh. 15 at p. 3; see also Exh. 7 [email sent on April 28, 2026].) Plaintiff's counsel responded that requests for production numbers 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 53, and 54 seek specific policy and procedure documents listed in the table of contents and noted that Defendant's responses stated that it would comply and produce responsive policies. (Id., Exh. 15 at pp. 4-5.)

On June 8, 2026, plaintiff's counsel requested another motion to compel extension to August 20, 2026, which defense counsel granted. (Johnson Decl., Exh. 16.) Defense counsel also stated she would follow up the following week concerning the policies. (Id., Exh. 17.) Plaintiff's counsel sent follow-up emails on June 18 and 30 and July 7, 2026, but defense counsel never responded or provided further documents or responses. (Id., Exhs. 18, 19, 20.)

On August 7, 2026, plaintiff Rochelle Gilliard (Plaintiff) filed the instant motion seeking further responses and responsive documents to her first set of requests for production numbers 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 53, and 54. No opposition was filed.

MEET AND CONFER

A motion to compel further responses to requests for production must include a "meet and confer" declaration showing a

“reasonable and good faith attempt” to resolve issues outside court. (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) In Department 43, “meet and confer” means in person or via phone, not by letter or email. (Department F43 Courtroom Information, at p. 2.)

The moving papers do not indicate whether counsel met and conferred directly. The motion includes copies of letters and mentions the parties were in the middle of a “meet and confer regarding the Policies and Procedures.” (Johnson Decl. ¶¶ 3-23, Exhs. 3-20.) Considering defense counsel has failed to respond to plaintiff’s counsel’s most recent emails after stating she would follow-up with plaintiff’s counsel on the policy and procedure documents, the court finds that Plaintiff’s supporting declaration satisfies the “meet and confer” requirement.

ANALYSIS

A. Compelling Further Responses to Requests for Production

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403-404.) The responding party must serve verified responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2031.260, subd. (a)(1)-(3), 2031.310, subd. (c).) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand. (Code Civ. Proc., § 2031.210, subd. (a).) If the responding party claims an inability to comply with a demand, the party must specifically state that “a diligent search and a reasonable inquiry has been

made in an effort to comply with that demand [and] whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (Code Civ. Proc., § 2031.230.) The statement must also “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Id.) Documents or category of documents produced in response to a request for production must “be identified with the specific request number to which the documents respond.” (Code Civ. Proc., § 2031.280, subd. (a).)

If a party agrees to produce documents in response to requests for production but fails to do so, the propounding party may move to compel the responding party’s compliance with the agreement. (Code Civ. Proc., § 2031.320, subd. (a).) The propounding party must show that the responding party did not comply with the agreement. (Id.)

Plaintiff seeks further responses and responsive documents to request numbers 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 53, and 54. Defendant does not oppose this motion

1. Request No. 37

Request number 37 seeks Defendant’s policies and procedures concerning nursing services, pursuant to California Code of Regulations, title 22, section 70213, subdivision (a), which were in effect during Ms. McCracklin’s admission as a patient at Defendant’s facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant did not provide a further response on December 19, 2025.

The court overrules the overly broad objection because the request is limited in time (policies in effect at the time of Ms. McCracklin’s admission) and scope (policies relating to nursing services according to a specific regulation). The court also overrules the “irrelevant” and “not reasonably calculated”

objections because Plaintiffs plead their causes of action in part based on Defendant's breach of its duties to provide adequate and qualified nursing staff and its failure to implement policies and procedures mandated by law. (FAC ¶¶ 58, 60, 68, 76 [referencing several regulations under Title 22 concerning nursing services]. See also Cal. Code Regs., tit. 22, § 70213, subd. (a) [requiring written policies and procedures for patient care be developed, maintained, and implemented by nursing staff].) As for the unduly burdensome objection, the court finds this objection also lacks merit because plaintiff's counsel's June 4, 2026, email identified three policies (Staff Competency, Training, and Validation Policies) which fall within the scope of request number 37. (See Johnson Decl., Exh. 15 at p. 4.) Defense counsel's June 4, 2026, email claiming producing over 100 policies and procedures would be unduly burdensome is undercut by Plaintiff's specific identification of corresponding policies in subsequent emails. By limiting the requested documents to three specific categories of policies, Plaintiff has reduced the likelihood of undue burden in locating and producing the requested documents. Thus, the court also overrules the unduly burdensome objection.

Therefore, the court grants Plaintiff's motion as to request for production number 37.

2. Request Nos. 38, 39, and 54

Defendant's initial responses objected to request numbers 38, 39, and 54 as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. The further responses stated "Responding Party will comply by producing the policies and procedures for the relevant units in effect at the time of the patient's admission."

Because no documents have been produced, the court grants Plaintiff's motion as to request for production numbers 38, 39, and 54.

3. Request No. 40

Request number 40 seeks Defendant's policies and procedures governing dietetic services to patients in Defendant's hospital facility, as required by California Code of Regulations, title 22, section 70273, subdivision (b), which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also agreed to comply by producing responsive policies and procedures but did not provide a further response.

The court overrules each objection for the same reasons stated above as to request number 37.

The court also notes that Defendant has failed to comply with its own statement of compliance to produce the requested responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 40.

4. Request No. 41

Request number 41 seeks all dietetic manuals available at each nursing station at Defendant's facility, as required by California Code of Regulations, title 22, section 70273, subdivision (d), which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also agreed to comply by producing responsive policies and procedures but did not provide a further response.

The court overrules each objection for the same reasons stated above as to request number 37.

The court also notes the Defendant has failed to comply with its own agreement to produce responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 41.

5. Request No. 42

Request number 42 seeks Defendant's "policies and procedures for responding to patient call lights or signals" which were in

effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also claimed that after a diligent search and reasonable inquiry, it could not comply with the request because no such policy exists. No further response was provided for request number 42.

The court overrules each objection for the reasons stated as to request number 37 above. The request is relevant because Plaintiffs allege in part that Ms. McCracklin was left unattended and unassisted for long periods of time, Defendant's staff failed to respond to Ms. McCracklin's alarms when she needed assistance, and the staff failed to turn or reposition Ms. McCracklin, leaving her in her own excrement and urine, which caused her to develop a pressure sore. (FAC ¶¶ 55-57.) In her separate statement, Plaintiff cites California Code of Regulations, title 22, sections 79838[1] and 71661, which require nursing units to maintain call systems and signal systems. (See Cal. Code Regs., tit. 22, §§ 71661, 79838.) Although both regulations do not include a provision requiring nursing facilities or nursing units within acute treatment facilities to maintain policies and procedures for responding to patient call lights or signals, the court does not understand why a facilities would maintain such systems as required by law and regulations while not having policies or procedures for how and when staff is to respond to the signals. The court also notes that the request seeks policies and procedures. Thus, the court finds that Defendant's response, claiming an inability to comply because "no such policy exists" lacks merit.

Therefore, the court grants Plaintiff's motion as to request for production number 42.

6. Request No. 43

Request number 43 seeks Defendant's policies and procedures for preventing the formation or progression of decubitus ulcers, which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also

agreed to comply by producing responsive policies and procedures but did not provide a further response.

The court overrules each objection for the same reasons stated above as to request number 37.

The court also notes the Defendant has failed to comply with its own agreement to produce the responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 43.

7. Request No. 44

Request number 44 seeks Defendant's policies and procedures regarding the care and treatment of decubitus ulcers, which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also agreed to comply by producing responsive policies and procedures but did not provide a further response.

The court overrules each objection for the same reasons stated above as to request number 37.

The court also notes the Defendant has failed to comply with its own statement of compliance to produce responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 44.

8. Request No. 45

Request number 45 seeks Defendant's policies and procedures for turning or changing the position of patients in bed, which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also

agreed to comply by producing responsive policies and procedures but did not provide a further response.

The court overrules each objection for the same reasons stated above as to request number 37.

The court also notes the Defendant has failed to comply with its own statement of compliance to produce responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 45.

9. Request No. 46

Request number 46 seeks Defendant's policies and procedures for cleaning patients who have urinated or defecated on themselves, which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also agreed to comply by producing responsive policies and procedures but did not provide a further response.

The court overrules each objection for the same reasons stated above as to request number 37.

The court also notes the Defendant has failed to comply with its own statement of compliance to produce responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 46.

10. Request No. 53

Request number 53 seeks any and all documents which describe Defendant's facility's "Patient Classification System" for determining the nursing care needs of individual patients at the hospital, as required by California Code of Regulations, title 22, section 70217, subdivision (b), which were in effect at the time Ms. McCracklin was a patient at the facility.

Defendant objected to the request as overly broad, unduly

burdensome, irrelevant, and not reasonably calculated to lead to discovery of admissible evidence. Defendant also agreed to comply by producing responsive policies and procedures but did not provide a further response.

The First Amended Complaint pleads that Defendant did not provide the staffing necessary to meet Ms. McCracklin's custodial care needs pursuant to sections 70217 (Nursing Service Staff) and 70215 (Planning and Implemental Patient Care). (FAC ¶ 58.) Sections 70215 and 70217 require the development of written nursing staffing plans which comply with specific nurse-to-patient ratios as well as the implementation of a Patient Classification System in order to evaluate and categorize patients based on their needs and the complexity of those needs.

If Defendant did not have such plans or improperly implemented them, this could demonstrate elder abuse due to understaffing. Thus, the court overrules each objection for the same reasons stated above as to request number 37.

The court also notes that Defendant has failed to comply with its own statement of compliance to produce the requested responsive documents.

Therefore, the court grants Plaintiff's motion as to request for production number 53.

The court grants plaintiff Rochelle Gilliard's motion to compel further responses to her first set of requests for production numbers 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 53, and 54.

Defendant Providence Health System - Southern California dba Providence Holy Cross Medical Center is ordered to serve further responses and responsive documents within twenty (20) days of the issuing of this order.

B. Sanctions

Plaintiff Rochelle Gilliard asks the court to impose \$5,600 in monetary sanctions against defendant Providence Health System - Southern California. (Johnson Decl. ¶ 29.)

The court must impose monetary sanctions against any

party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or produce documents at a deposition, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480, subd. (j).) Moreover, the court must impose monetary sanctions against any party or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the party subject to sanctions acted with substantial justification or that other circumstances make the sanctions unjust. (Code Civ. Proc., § 2031.320, subd. (b).)

Plaintiff Gilliard is entitled to sanctions because defendant Providence Health System's objections lack merit, the promised documents have not been produced, and Defendant provides no substantial justification for failing provide further responses or the requested documents.

Plaintiff's counsel charges \$400 per hour. (Johnson Decl. ¶ 29.) The sanctions request includes 14.0 total hours for meeting and conferring; reviewing Defendant's written responses and further responses; reviewing the highlighted table of contents; researching and preparing the instant motion and supporting papers; reviewing and replying to an opposition; preparing an oral argument; and appearing at the motion hearing. Plaintiff also seeks a \$60 filing fee.

The court finds the hourly rate is reasonable but reduces the time requested because no opposition was filed, it is unclear whether counsel actually met and conferred directly, and many of defendant's discovery responses were identical.

Therefore, the court grants the request for sanctions in the reduced amount of \$4,060: (1) 2.0 hours meeting and conferring; (2) 3.0 hours reviewing the highlighted table of contents and the further responses; (3) 4.0 hours preparing the instant motion and oral argument; (4) 1.0 hour attending the hearing; and (5) a \$60 filing fee.

CONCLUSION and ORDER

1. The court grants plaintiff Rochelle Gilliard's motion to compel further responses to her

first set of requests for production numbers 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 53, and 54 as described above in Section A.

2. Defendant

Providence Health System - Southern California dba Providence Holy Cross Medical Center is ordered to serve further responses and responsive documents within twenty (20) days of the issuing of this order.

3. The court

awards plaintiff Gilliard \$4,060 in monetary sanctions. Defendant Providence Health System - Southern California dba Providence Holy Cross Medical Center is ordered to pay plaintiff Gilliard's counsel within thirty (30) days of the issuing of this order.

Plaintiff Rochelle Gilliard to give notice.

[1] The court

believes this is a typo and Plaintiff is referring to 22 C.C.R. § 79839 "Call Systems."